TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JUNE 29, 2020
MINUTES

Attachment 1-- **Staff Report**

Present: Barry Wolff, Chair, Elliott Barrow, Stephen Wood, Stephen Duke, Megan Stevens.
Absent: Beth Santilli
Staff: Michael Robertson, Julia Copeland, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda
B. Approval of Minutes (February 2020 meeting)

Mr. Wood moved for approval of the agenda and minutes. Ms. Stevens seconded the motion. All in favor.

C. Public Comment

Mr. Jimmy Bagwell, 41 Vincent Drive, spoke regarding the station at Hospital Drive and Bowman Road. He suggested that the area should remain for hospital uses and the neighborhood area maintained. He suggested that the gas station is not an appropriate use for the neighborhood. He expressed concern with the gas station also being in close proximity to Shem Creek. He asked that the request be denied.

Ms. Jane Deierlein, 1018 Lakeview Dr, expressed concern with the proposed gas station on Hospital Drive. She suggested that encouraging the gas station would exacerbate traffic and cause possible delays for emergency vehicles.

Mr. Demetrius Popadopolous, 299 Isaw Dr, spoke regarding the proposed gas station on hospital drive. He asked that the property should not be "rezoned" to allow the gas station. He suggested that the medical uses are compatible to the neighborhood, but the proposed gas station is not. He expressed concern with alcohol sales being in proximity to the hospital. He also expressed concern with the proximity of the school.

There being no further comments, Mr. Wolff closed public comment and continued with the agenda.

D. General Correspondence

1. Request for one-year extension of Case V-11-18, 832 Coleman Blvd., in accordance with §156.049 Vested Rights

▶ *Mr. Duke moved for approval of the one-year extension. Ms. Stevens seconded the motion. All in favor.*

E. Explanation of Procedures

F. Administration of Oath

▶ Mr. Wolff reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. Case V-12-2020, 30 Isle of Hope, TMS# 553-06-00-276, Request for relief from the strict application of I'On Code Planned Development ordinance to allow a 46.6% lot coverage for an 'All Yard Building" lot for the construction of a garage. The I'On Planned Development Ordinance limits "All Yard" lots to 40% maximum lot coverage.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

▶ Mr. Andy Gowder and Steve Kalhorn, attorney for applicant, reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

Mr. Barrow stated that Mr. Gowder is a business acquaintance and a family friend. He stated that he is able to render an impartial decision.

▶ *Ms. Stevens moved for approval based on findings that this is smallest land type, percentage of use is only increasing 6%, the concrete slab was already in place and there is no opposition from the neighborhood. Mr. Duke seconded the motion. All in favor.*

2. Case S-1-2020, 520 King Street, TMS# 532-01-00-227, Request for a Special Exception to allow a monopole telecommunications tower in accordance with §156.325, §156.411, and §156.118 *et al* on property zoned PI-2 Public Institutional-2 District. CORRESPONDENCE

- Mr. Robertson reviewed the request with the Board (attachment 1).

- Mr. David Niesse, Mount Pleasant Waterworks, reviewed the request with the Board.

- Mr. Walter Brown, III, 437 Venning St, stated that he has a petition of those that are in opposition of the request. He stated that he has attended several meetings attempting to first save the water tower, and then, to oppose the cell tower. He suggested that the cell tower is not appropriate to the neighborhood and demonstrated the height of the proposed cell tower for the Board.

- Ms. Deaudre Gregg, 433 Venning St, expressed concern with the cell tower. She stated that the property was previously a school. She suggested that the water tower is a historic structure and should be preserved. She suggested that this request is not compatible with the neighborhood. She suggested that this is not the best option or location. She suggested that careful consideration should be taken for the location.

- Mr. Jason Walton, 705 Center St, suggested that the requirements of the ordinance regarding line of sight have not been met and the application is not complete in regard to this required information. He suggested that this is not the best location for the cell tower and is not in keeping with the character of the neighborhood. He suggested that it is unclear the exact height of the cell tower in the submitted information. He questioned the accuracy of the Sensus study.

There being no further comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for denial of the request based on the findings that there is not adequate proof that all has been done to preserve the tower, the applicant has not demonstrated that §156.411(A)(3)(D) has been satisfied as no evidence was presented that there would not be any detriment to the*

settlement community. Mr. Duke seconded the motion. Motion passed on a 4 to 1 vote with Mr. Wolff, Mr. Barrow, Ms. Stevens, and Mr. Duke in favor; Mr. Wood opposed.

3. **Case V-13-2020, 115 Elizabeth Street, TMS# 532-01-00-149, Request for relief from the strict application of §156.201 and additional relief from that previously granted by the Board of Zoning Appeals Case V-40-16 to allow the elimination of the rear and side yard buffer and maintenance of the existing 5-foot wooden picket fence. The ordinance requires a twenty-five (25) foot E buffer with an 8- foot masonry column and wood infill fence. The Board of Zoning Appeals Case V-40-16 granted a reduction of the 25-foot buffer to five feet with an 8-foot masonry column and wood infill fence.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1). He read a memo from the Zoning Administrator for the record.

▶ Mr. Dan Sherer, architect for the owner, reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

▶ *Mr. Wood moved to uphold the findings of the Zoning Administrator based on the staff report, applicant submittal, memo from the Zoning Administrator and that the applicant followed the recommendations of the Zoning Administrator. Mr. Duke seconded the motion. All in favor.*

4. **Case A-1-2020, Pepper Plantation PD, Hwy. 17N, TMS# 615-00-00-044, Appeal of the Zoning Administrator's determination that a proposed auto service and repair component of an automobile dealership is a minor part of the proposed business and therefore should be allowed to operate as part of the retail establishment. The applicant contends that the proposed use is not a "minor part" of the dealership business since it accounts for almost half of the business generated. The applicant also contends that use does not meet the requirements of the Pepper Plantation Planned Development Ordinance, specifically stating "No outdoor storage of equipment or cars without adequate screening with 12,000 square foot maximum." CORRESPONDENCE**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. John Nunes, applicant, reviewed the request with the Board.

- Mr. Jay Claypoole, attorney for dealership, stated that they have been working with the Town to come up with a resolution for screening of the site. He suggested that the Zoning Administrator was correct in its interpretation. He asked that the Zoning Administrator's decision be affirmed.

- Mr. Steve Catalano, 3847 Tupelo Church Lane, disagreed that the service and repair is a minor part of the business and referred to the site plan showing the different bays. He also expressed concern with the architecture of the building and that it is not in keeping with the character of Mount Pleasant.

- Mr. Mark Berry, 2012 Welsh Pony Dr, expressed concern with the potential noise from the repair and service aspect of the business. He expressed concern with proper storage of used vehicle oil.

- Ms. Sharon Marsh, 1481 Oldenburg, stated that she objects to exceptions being allowed for established rules. She suggested that residents expect that the zoning will be adhered to and that businesses that meet the established zoning should only be allowed.

- Ms. Claudia Page, 2077 Welsh Pony Dr, stated that the zoning allows for service and repair as a minor part, and suggested that the business doing 60% or more in service and repairs is not minor. She suggested that this additional business will have an impact to the neighborhood and suggested that it will also increase the amount of traffic for the neighborhood.

- Mr. John Rowland, 2023 Welsh Pony Drive, suggested that the residential neighborhood was established from the main area of Mount Pleasant. He suggested that the neighborhood was not established for businesses.

- Ms. Theresa Rowland, 2023 Welsh Pony Drive, expressed concern with the proximity of the business to the residential neighborhood. She expressed concern with the amount of noise that would be heard from the service and repair of vehicles.

There being no further business, Mr. Wolff closed public comment.

Mr. Barrow stated that he and Mr. Claypoole's son have practiced law in the past, but stated that he would be able to render a fair decision.

▶ *Mr. Wood moved to affirm the Zoning Administrator's decision based on the fact that the principal use of the property is automobile sales. Mr. Duke seconded the motion. Motion passed on a 4 to 1 vote with Mr. Wolff, Ms. Stevens, Mr. Duke, and Mr. Wood in favor; Mr. Barrow opposed.*

The Board convened for a short break at 8:02 pm and reconvened at 8:12 pm.

5. **Case V-14-2020, 1135 Snapdragon Court, TMS# 562-08-00-122, Request for relief from the strict application of §156.304 C.3 [Table] to allow a two-foot rear yard encroachment. The ordinance requires a 20-foot rear yard setback in R-4 Medium-density Residential District.**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

▶ Mr. Randy Gant, representative for the applicant, reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

▶ *Mr. Barrow moved for approval based on the presentation at the meeting and staff report. Mr. Duke seconded the motion. All in favor.*

6. **Case V-10-2020, 115 Friend Street, TMS# 532-05-00-069, Request for relief from the strict application of Section 156.313 (D)(3) to allow a 63 square foot (1%) impervious area increase. The ordinance limits impervious area to 40% of lot. CORRESPONDENCE**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

▶ Mr. Tim Cook, representative for the owner, reviewed the request with the Board.

Mr. Alan Smith, owner, stated that additional photos of the underground drainage was submitted for the Board's consideration, but do not appear to have been included with the application. He distributed the additional photos for the Board's consideration.

Ms. Ashley Woody, 110 Friend St, expressed concern with the retaining wall as it causes flooding in her backyard. She stated that ordinances for the lot coverage are in place to protect the residents and suggested that they should be adhered to. She suggested that the retaining wall is vital to the stormwater management, so the impervious pavers should not be allowed.

Mr. Waring Howe, 118 Friend St, stated that drainage in the Old Village area is a sensitive issue for the residents. He stated that he has experienced recent flooding issues. He suggested that the regulations should be adhered to and followed. He suggested that the pool pavers should not be considered part of the drainage system. He suggested that the request be denied.

There being no further comments, Mr. Wolff closed public comment.

Mr. Barrow stated that he is a professional acquaintance and good friend of Mr. Howe, but is able to render a fair and impartial decision.

Mr. Wood moved for denial of the request as the factors for approving a variance have not been met. Mr. Barrow seconded the motion. All in favor.

7. Case V-15-2020, 1210 Clonmel Place, TMS# 514-12-00-189, Request for relief from the strict application of Section 156.225 (C)(2) to allow the removal of 34.5-inch, multi-stem Laurel Oak.

Mr. Robertson stated that the applicant has withdrawn this request.

8. Case V-16-2020, 302 Bank Street, TMS# 532-05-00-203, Request for relief from the strict application of Sections 156.313(D)(3) OV-HD and 156.321 ISLC-OD, to allow greater than 40% impervious surface as defined in Sec. 156.007. CORRESPONDENCE

Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Stephan Zacharkiw, owner, reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for deferral as requested by the applicant at the meeting. Mr. Duke seconded the motion. All in favor.*

9. Case S-2-2020, Bowman Road & Hospital Drive, TMS# 559-00-00-070, Request for Special Exception in accordance with the provisions of Section 156.326 (C) Use Conditions (5) Commercial Uses (g) Gas Station as allowed in 156.318 (D)(5)(d).

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Mr. Edmund Watkins, representative for the applicant, reviewed the request with the Board.

- Mr. Howard Chapman, 824 Natchez Circle, stated that he was at the meeting when the hospital property was bought and originally developed and it was stated that a gas station would not be allowed under the zoning. He distributed a copy of the ordinance and covenant restrictions.

- Mr. Frank Middleton, 795 Wakendaw Blvd, stated that he is opposed to the request. He stated that there are several egress/ingress for the hospital from Bowman Road and suggested that additional traffic is not needed in the area. He suggested that a gas station is not needed for the area. He asked that the request be denied.

There being no further comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for denial of the request based on the findings that the applicant has not satisfied burden of proof as outlined in §156.411(A)(3)(A-D), specifically with regard to having appropriate screening and buffering, no evidence that pedestrian and vehicular traffic would not be impeded, and evidence presented was to the contrary, it has not been demonstrated that the entrance and exit for the property is adequately designed for the proposed use, and no evidence that the proposed use would be compatible with existing uses*

and not be detriment to the surrounding area. Mr. Duke seconded the motion. All in favor.

10. Case V-17-2020, 1054 Phillips Park Drive, TMS# 532-07-00-250, Request for relief from the strict application of Section 156.303 (C) to allow building coverage greater than 50%.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Ms. Nancy Neill, applicant, reviewed the request with the Board.

- Mr. Eric Thorpe, contractor, reviewed his application process and stated that he was not aware that the lot coverage did not already include the patio area that she wishes to enclose. He stated that if all three townhome properties were combined with a sunroom, it would account for approximately 36% lot coverage.

- Mr. Dan Hatchell, HOA president, stated that he has no objection to the request and suggested that it would enhance the property and would not be a detriment to the surrounding properties. He stated that there are no current drainage areas and suggested that enclosing the porch would not create any drainage issues.

There being no further comments, Mr. Wolff closed public comment.

- *Ms. Stevens moved for approval of the request based the findings that it is a property situated with a smaller area, smaller compared to adjacent lots and cannot build to the extent that can be done on adjacent lots. Mr. Duke seconded the motion. All in favor.*

There being no further business, the meeting adjourned at 10:26 pm.

Submitted by,
L. Lynes
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